

Illegal Eviction Case Documentation

RE: Illegal Eviction, Discriminatory Harassment, and Civil Rights Violations by Landlord Mr. Benson BYARUHANGA and Property Manager Daniel ANDINDA

I. Executive Summary & Nature of the Case

Case Overview

- **Plaintiff:** Software Developer / Entrepreneur
- **Issue:** Illegal eviction based on false accusations and discriminatory practices.
- **Timeline:** July 2025 - Present
- **First Defendant (Property Manager):** Daniel ANDINDA
- **Second Defendant (Property Owner):** Benson BYARUHANGA

Case Classification

This case primarily asserts claims for:

- **Primary Cause of Action:** Illegal Eviction under the Landlord and Tenant Act, 2022.
- **Secondary Causes of Action:**
 - Discriminatory harassment based on perceived sexual orientation, nationality, and profession.
 - Constitutional violations (specifically Article 27 - unlawful entry and search).
 - Intentional infliction of emotional distress.
 - Professional defamation and business interference.

Relief Sought

The Plaintiff seeks justice and accountability for the severe wrongs committed by the Defendant, including:

- Redress for the illegal eviction and associated statutory damages as mandated by law.
- Compensation for significant professional and economic losses incurred due to severe work disruption.
- Reimbursement for forced relocation and emergency living expenses.
- Recovery for property damages sustained during the coerced move.
- Damages for severe mental and emotional distress resulting from harassment, false accusations, and discriminatory targeting.
- Punitive measures to deter the Defendant and others from engaging in similar illegal and discriminatory conduct in the future.

Note: The Plaintiff emphatically does NOT seek reinstatement to the property, focusing solely on the pursuit of justice and accountability through appropriate remedies.

This memorandum details a pattern of illegal conduct by my landlord and his agent, culminating in an illegal eviction. The landlord engaged in a premeditated "rent refusal scheme" to fabricate grounds for eviction, issued fraudulent notices, executed a "self-help" eviction by seizing my key, and repeatedly harassed me with police based on false, discriminatory accusations. These actions were not only illegal but also directly endangered my safety and caused severe disruption to my high-value, international professional work. This document outlines the legal violations and quantifies the substantial damages sought.

Key Legal Frameworks

Uganda's landlord-tenant relationships are now governed by the **Landlord and Tenant Act of 2022**, which was signed into law by President Museveni and came into effect in June 2022. This law replaced the previous Rent Restriction Act, Cap 231.

Basis for Illegal Eviction

False Accusation #1: The Landlord accused the tenant of being an "online scammer."

False Accusation #2: The Landlord accused the tenant of being homosexual based on wearing an earring

False Accusation #3: The Landlord accused the tenant of housing multiple people.

False Accusation #4: The Landlord accused the tenant of drug trafficking and terrorism charges.

False Accusation #5: The Landlord accused the tenant of being responsible for recent thefts in the complex.

Evidence Used: Neighbors never saw the tenant "go to work" (completely invalid reasoning)

Discriminatory Basis: Targeting based on appearance/perceived sexual orientation

Incitement: Neighbor complaints influenced the landlord's decision

Multiple Discrimination: Action targets remote workers, young professionals, and perceived LGBTQ+ status

Xenophobia: Targeting a tenant based on their national origin.

Premeditated Rent Refusal Scheme

The Setup Phase

Duration: The Landlord deliberately refused rent payments.

Strategic Purpose: Create a false appearance of rent arrears to manufacture an eviction justification.

Evidence of Premeditation: the scheme required advanced planning, proving this wasn't reactive to security issues.

Legal Impossibility of Non-Payment Eviction

Fundamental Principle: Cannot evict tenant for non-payment when landlord refuses to accept payment.

Tenant's Willingness: Tenant attempted to pay rent as required.

Landlord's Obstruction: Landlord actively prevented compliance with lease obligations.

Legal Precedent: Well-established that the landlord cannot create arrears through refusal.

Contradiction with Security Claims

Financial Motive: Continued desire for rent payments proves security was not a real concern

Opportunistic Accusations: Security claims only emerged after the rent refusal scheme was complete

Evidence of Manufacturing False Grounds

Common Landlord Scam: Well-known illegal tactic regularly punished by courts.

Bad Faith Conduct: Deliberate creation of false lease violations.

Systematic Deception: Part of a broader pattern, including fake eviction documents.

Judicial Recognition: Courts specifically recognize and penalize this manipulative behavior.

Discriminatory Basis

Targeting Remote Workers: Stereotyping legitimate home-based work as "scamming".

LGBTQ+ Discrimination: Making dangerous false accusations based on appearance.

Age Discrimination: Dismissing the tenant as "just some random kid".

Professional Discrimination: Targeting modern tech workers.

Unlawful Eviction Letters: A Comprehensive Analysis

This document provides a detailed examination of an eviction process, highlighting discrepancies between the lawful procedure outlined in The Landlord and Tenant Act, 2022, of Uganda, and the actions undertaken by the landlord. The analysis further scrutinizes the eviction notices issued by the landlord to demonstrate their inadequacy as legal instruments for eviction.

1. The Lawful Eviction Process in Uganda

The Landlord and Tenant Act, 2022, establishes a clear, multi-stage legal framework for the termination of a tenancy and the subsequent recovery of premises by a landlord. This process is designed to prevent arbitrary actions and protect the rights of both parties.

- **A. Termination Notice (Landlord's Initiative):**
 - The initial step for a landlord to end a tenancy is to issue a formal "notice of termination" to the tenant.
 - This notice must adhere to specified periods (e.g., 7 days for weekly tenancy, 30 days for monthly, 60 days for year-to-year).
 - It serves as a formal declaration of the landlord's intent to end the tenancy and typically demands the tenant vacate by a certain date. It may also demand settlement of outstanding obligations (e.g., rent arrears, utility bills).
 - **Crucially, this notice does NOT grant the landlord legal authority to physically remove the tenant.**
- **B. Application to Court for Recovery of Premises (If Tenant Fails to Vacate):**
 - If the tenant fails to vacate the premises after the termination notice period has expired, the landlord must then initiate legal proceedings in a court of competent jurisdiction.
 - The landlord would apply for a court order for possession of the premises and, if applicable, for the recovery of rent arrears. This process allows for due process, where the tenant has the opportunity to present their case.
- **C. Lawful Re-entry and Possession (Enforcement of Court Order):**
 - The Act specifically outlines the conditions under which a landlord may re-enter and take possession of premises without requiring a prior specific court order *for that physical re-entry*, but only in very limited circumstances and with strict protocol.
 - **Section 29(2) of the Act** is paramount here: "Where the default ... continues for more than thirty days, the landlord shall be entitled to re-enter the

premises and take possession **in the presence of an area local council official and the police.**"

- The use of the conjunction "**and**" is critical: It mandates the simultaneous presence of **BOTH** an area local council official **AND** the police. The presence of one without the other renders the re-entry non-compliant with the Act. This dual requirement serves as a vital safeguard against unlawful evictions, ensuring accountability and preventing breaches of peace.
- **Any physical re-entry or eviction that does not strictly adhere to this protocol, or which occurs without a direct court order for possession, is considered an "unlawful eviction" under Section 45 of the Act.**

2. The Landlord's Illegal Actions: Bypassing the Law

The information provided indicates a clear circumvention of the lawful eviction process by the landlord:

- **Absence of Court Involvement:** The landlord did not obtain a court order for possession of the premises. The eviction notices, by their own phrasing, confirm that the landlord merely *intended* to "pursue all available lawful remedies" rather than having already done so.
- **Failure to Adhere to Section 29(2) Protocol:** The landlord did not conduct the re-entry "in the presence of an area local council official and the police." The absence of **both** these mandated parties during the physical removal of the tenant renders the re-entry unlawful.
- **Acts of Intimidation and Violence:** The reported intimidation, confiscation of keys, and public insults preceding and accompanying the eviction are direct violations of the tenant's right to "quiet enjoyment" of the premises (Section 19) and constitute harassment. These acts are contrary to the spirit and letter of the Act, which aims to regulate the landlord-tenant relationship and prevent arbitrary use of force. Confiscation of keys directly impedes the tenant's lawful access and possession, akin to an illegal lockout.
- **"Self-Help" Eviction:** The totality of the landlord's actions constitutes an illegal "self-help" eviction. This occurs when a landlord attempts to regain possession of a property by force, intimidation, or changing locks, without following the judicial or statutory procedures. Such actions are strictly prohibited by the Act (Section 45).

3. Analysis of the Eviction Notices

The two letters issued by the landlord, while titled "Eviction Notice," are fraught with inconsistencies and legal deficiencies that further underscore the illegality of the landlord's subsequent actions.

A. Breakdown of First Eviction Notice (Dated July 12, 2025)

- **Document Details:**
 - **Sender:** Daniel ANDINDA, Property Manager

- **Recipient:** Emmanuel Gabriel Gatwech Daniel
- **Date:** July 12, 2025
- **Eviction Date:** No later than July 20, 2025 (providing only 8 days' notice)
- **Analysis of Content and Legal Flaws:**
 - **Vague Cause for Eviction:** The letter cites the need for the landlord to "re-use the house for other purposes." This is a vague, non-specific reason. Legally, "own use" evictions often require the landlord to specify the exact intended purpose (e.g., personal residence, family member's use, etc.). This vagueness suggests the landlord may not have a legitimate need and is simply using this as a pretext.
 - **Scenario 1: Landlord Authorized Vague Language:** If the landlord directly authorized this vague language, it suggests a deliberate attempt to deceive or mislead the tenant. The lack of specificity regarding the "other purposes" weakens the landlord's position in court. In many jurisdictions, claiming a property for personal use or redevelopment requires a higher standard of proof to prevent landlords from using this as a pretext to remove a tenant for other, potentially unlawful, reasons (e.g., to immediately raise the rent for a new tenant). By using a non-specific phrase, the landlord avoids having to provide concrete evidence of their legitimate need, which can be a strong point for the tenant's defense to highlight.
 - **Scenario 2: Property Manager Acted Without Authority:** If the property manager, Daniel ANDINDA, acted without the landlord's specific authorization for this vague reason, it raises significant questions about the validity of the notice itself. The tenant's defense could argue a "lack of agency," asserting that the property manager lacked the legal authority to terminate the tenancy in this manner, thereby rendering the notice invalid. This could lead to contradictory testimony between the landlord and the property manager, casting doubt on the landlord's overall credibility. The property manager's actions could even be framed as having a fraudulent intent to evict the tenant, which would invalidate the eviction.
 - **Unlawful Notice Period:** The notice provides only eight days (July 12 to July 20) for the tenant to vacate. This is a severe violation of the Landlord and Tenant Act, 2022, which mandates a minimum of 60 days for a "no-fault" eviction (Section 38(2)(c)) and 30 days for a monthly tenancy (Section 38(2)(b)). This is a critical legal defect that invalidates the notice.
 - **Improper Legal Authority:** The letter states the landlord will "pursue all available lawful remedies" if the tenant fails to comply. This is a threat, not a statement of fact. It confirms that the landlord has not yet obtained a court order. A valid eviction notice from a court would be the result of a court case, not a threat to start one.
 - **Attempt at Intimidation: Problematic CC Line ("LC 1 Chairperson, Kabalagala Police"):**

- **Vague and Improper Service:** The CC line does not specify individual recipients (e.g., an officer's name, badge number, or official title). It merely lists institutional entities ("LC 1 Chairperson," "Kabalagala Police"). You cannot properly serve legal notice to an entire police department or an unspecified "CLO Office."
- **No Proof of Receipt:** Without specific individuals identified, there is no way for the landlord to prove actual delivery, receipt, or acknowledgment of these notices by the listed entities. This undermines any claim that these officials were duly informed or present.
- **Theatrical Purpose Only:** The inclusion of these entities in the CC line, without proper specific identification or proof of service, strongly suggests a purely intimidating or theatrical purpose rather than legitimate legal communication. It creates a false impression of official involvement that did not materialize in the actual eviction.

B. Breakdown of Second Eviction Notice (Dated July 21, 2025)

- **Document Details:**
 - **Sender:** Daniel ANDINDA, Property Manager
 - **Recipient:** Emmanuel Gabriel Gatwech Daniel
 - **Date:** July 21, 2025
 - **Eviction Date:** No later than August 12, 2025
- **Analysis of Content and Legal Flaws:**
 - **Conflicting Narrative:** This letter serves as a "reminder" of the first notice but provides a new, extended deadline of August 12. This creates a confusing timeline and contradicts the urgency of the first notice. It suggests the landlord did not have a pressing need to "re-use" the property as initially claimed.
 - **Scenario 1: Landlord Authorized Vague Language:** If the landlord authorized the shift in emphasis to arrears without clear, quantified specifics, it further supports an argument of deliberate obfuscation or an attempt to find *any* reason to evict, rather than a legitimate, consistent one. This lack of consistency suggests the landlord is grasping for justifications.
 - **Scenario 2: Property Manager Acted Without Authority:** If the property manager introduced the emphasis on arrears without the landlord's explicit instruction, it compounds the "lack of agency" problem. It would indicate the property manager was acting beyond their scope, potentially fabricating or exaggerating claims, which would again undermine the notice's validity and the landlord's overall case.
 - **Reference to Non-Specific Arrears:** The notice mentions "outstanding rent arrears and utility bills" but, like the first letter, fails to specify the exact amount owed or the period for which it is owed. A legally valid notice for non-payment must state a specific amount to give the tenant a clear opportunity to remedy the situation. The vagueness of this claim undermines the landlord's argument.

- **Continued Procedural Violations:** The letter still lacks any legal authority, such as a court case number or a judge's signature. It reiterates the threat of pursuing "lawful remedies," again confirming that a court order does not exist.
- **Lack of Specificity in "Cc" Line ("Kabalagala Police - CLO office"):** The second notice is "Cc'd" to "Kabalagala Police - CLO office." This is even more vague than the first notice, as it doesn't name a specific individual. You cannot properly serve a legal notice to an entire office or department without identifying a specific recipient. This highlights the notice's function as a tool for intimidation rather than legitimate legal communication.

Overall Legal Conclusion

Both letters are fundamentally flawed and provide strong evidence of an illegal "self-help" eviction. The notices are not legally binding documents and do not grant the landlord or their agent the authority to forcibly remove the tenant. The landlord's actions, from the drafting of these defective letters to the subsequent "self-help" eviction and police harassment, demonstrate a deliberate bypassing of the legal system. This is a clear violation of the Landlord and Tenant Act, 2022, and provides the tenant with a strong basis for legal claims, including for damages, illegal eviction, and harassment.

1. Lack of Legal Authority and Procedural Bypass:

No Court Involvement: A legitimate eviction process requires a court filing, a judge's order, and enforcement by an official bailiff. This letter completely bypasses the legal eviction process. There is no court case number, judge's signature, or official seal on the document.

Landlord and Tenant Act, 2022. The law requires a minimum of **60 days' notice** for termination of tenancy on grounds other than non-payment of rent. For non-payment of rent, a 30-day notice is required. The notices provided are not compliant with this legal requirement.

Property Manager's Role: A property manager, such as Daniel ANDINDA, has no legal authority to evict a tenant. This is just a guy with a printer and a title he's overestimating.

The phrase "pursue all available lawful remedies" means they haven't pursued any lawful procedures yet. A real eviction notice from a court would be the result of those lawful remedies, not a threat to start them. This proves they skipped the entire legal system.

There are no signatures from the police or the chairperson on the documents. For legal purposes, a party must acknowledge receipt of a notice, for example, by signing a copy, which serves as proof of service. Without this, the landlord cannot prove they fulfilled their obligation to inform the listed parties.

2. Evidence of Bad Faith and Premeditation:

Intimidation Tactics: The letter was intentionally copied to the police and the LC1 Chairperson to appear official. This is considered a theatrical and intimidating tactic, not a legal action.

The police and the LC 1 chairperson are not official parties to the tenancy agreement between me and the landlord.

3. Subsequent Illegal Actions:

Self-Help Eviction: Following the letter, the landlord engaged in a "self-help eviction", which is prohibited under Ugandan law. This included personally taking the tenant's key. This illegal action occurred even before the August 12, 2025, departure deadline stated in the notice.

Police Harassment: The landlord used the letter's pretext to repeatedly bring police officers to the property to intimidate the tenant and make false accusations of drug possession. This demonstrates a pattern of harassment and a complete disregard for due process.

The **Landlord and Tenant Act, 2022**, requires landlords to go through the courts to obtain an eviction order. The police's role would be to enforce a court order, not to act on a landlord's letter. The police themselves could be held liable for illegal eviction if they were to act without a court order.

Conclusion:

This letter, along with the subsequent actions, serves as strong evidence of clear procedural violations and provides the foundation for legal claims for damages.

Procedural Violations

1. No Legal Court Process

What Should Happen: Court filing → hearing → judge's order → official bailiff enforcement

What Happened: Property manager letter → key seizure

Evidence: No court case number, no judge signature, no official seal

2. Self-Help Eviction (Illegal)

Action: The Landlord personally took the tenant's key

Legal Status: Self-help evictions are prohibited under Ugandan law

Timing: Occurred before landlord's own stated deadline (August 12, 2025)

3. Improper Notice Process

Document: "Eviction Notice" dated July 21, 2025, from Daniel ANDINDA

Legal Authority: ZERO - Property manager letters cannot legally evict tenants

Intimidation Tactics: CC'd to police/LC1 to appear official (purely theatrical)

History of Misconduct

I have identified a clear and consistent pattern of legal violations by my landlord throughout our tenancy. This section details a clear and consistent pattern of legal violations by the landlord, which demonstrates a fundamental disregard for legal procedures and tenant rights. These actions occurred before the eviction process even began and serve as a foundation for the legal claim by showing the landlord's lack of good faith from the outset.

The following is a breakdown of the landlord's illegal conduct.

Entering an Unenforceable Tenancy Agreement: My landlord entered into a verbal tenancy agreement with me for a rent of 800,000 Uganda Shillings. By law, any tenancy agreement with rent of 500,000 UGX or more must be in writing to be legally enforceable. My landlord's failure to provide a written contract makes our entire agreement void and unenforceable from the outset.

Disregard for Basic Protocol: On multiple occasions, the landlord visited the property without providing proper notice or communicating prior, and when I requested that he follow the protocol, he stated, "I want you out of my house, what protocol?" and then dismissed my suggestion to go to the police's Community Liaison Office (CLO) by saying he knew the officer personally and that the CLO would not be able to help me. This demonstrates a clear awareness that his actions were illegal and an unwillingness to follow legal procedure.

Failure to Obtain My Mandatory Identification: According to the law, my landlord was legally barred from entering into any tenancy agreement with me unless I first provided my identification. As a non-citizen, this would have been my passport. My landlord failed to request this mandatory document, which is a direct violation of their legal obligation, and allowed them to improperly enter into the agreement.

Failure to Maintain and Provide Records: My landlord was mandated to keep a formal record of my tenancy details, including my particulars, my immigration status, the premises, and the rent

amount. They were then required to provide me with a copy of this record within 14 days of my occupation. They failed to do any of this, which is another clear violation of the law.

Flawed and Unlawful Eviction Notices: My landlord issued two legally invalid eviction notices. They failed to provide a valid reason for eviction, the notice period was unlawfully short, and they lacked any official legal authority, such as a court seal or a judge's signature. The use of "Cc's" to police and local authorities was a clear intimidation tactic designed to create a false sense of legal authority.

The Illegal Eviction: Despite the notices, my landlord's final act of physically removing me from the property without a court order is the most significant violation. The law requires a landlord to obtain a court order before a tenant can be legally evicted. My landlord's decision to bypass the legal system and force me out constitutes a clear case of illegal eviction.

Security Endangerment

Ironic Security Claims

Landlord's Justification: Claimed eviction was for "security concerns", which he refused to disclose when confronted.

Reality: Landlord's actions directly endangered the tenant's security.

Context: Multiple thefts had occurred in the complex in previous weeks.

Endangerment: Confiscating the house key forced the tenant to sleep with an unlocked door.

False Accusations: Blamed the tenant for the very thefts that made security crucial.

Documented Theft Pattern

Recent Criminal Activity: Multiple thefts in the complex weeks before eviction.

Tenant Victimization: The Landlord accused the tenant of being the perpetrator.

Security Breach: Landlord's key confiscation left the tenant vulnerable to these ongoing crimes..

Duration: Several nights of sleeping with the unlocked door due to a missing key.

Documented Evidence

Physical Evidence

Fake Eviction Notice (July 21, 2025)

Property manager letter masquerading as a legal document

No court involvement whatsoever.

Proves premeditation and bad faith.

Embassy Progress Report

Proves legitimate, high-level professional work

Demonstrates the international scope and importance of disrupted projects

Shows tenant is an established developer, not a "scammer"

Witness Evidence

Interpol Officer Testimony

Context: Tenant arranged for landlord to speak with Interpol officer

Landlord's Statements: Repeated false accusations about homosexuality and criminal activity to the officer

Significance: Independent law enforcement witness to defamatory statements

Credibility: Interpol officer testimony carries substantial weight in court

Proves Intent: Shows landlord was actively trying to get the tenant arrested based on false claims

Timeline of Events

July 12, 2025: Initial email notice (referenced in letter)

July 21, 2025: Formal "eviction notice" from property manager

August 12, 2025: Stated deadline for departure

After August 12, the Landlord took the key (violated eviction procedures)

Multiple Nights: Tenant forced to sleep with unlocked door during crime wave

During the Packing Period, the Landlord brought a police officer to search for drugs and continued making false accusations. Before that, he visited twice the day before, bringing an officer, and he threatened to kick us out immediately, without any formal letter or legal aid/company. Neighbors are witnesses.

Multiple Incidents of Coordinated Intimidation and Harassment

The actions taken against me were not a single, impulsive act but a deliberate and escalating campaign of intimidation and harassment, culminating in a grave abuse of power. I have identified three distinct, yet connected, incidents that demonstrate a malicious pattern of behavior and a clear conspiracy to commit illegal acts.

Incident 1: Saturday, August 16, 2025

On this day, my landlord, Mr. Benson Byaruhanga, visited my home. He verbally threatened me with immediate ejection without any legal process. He trespassed on my property, confiscated my keys, and hurled insults at me. He made false accusations that I was a drug trafficker and a homosexual, and threatened that he would call the police and have me spend the night in a cell. These actions were witnessed by a friend who was visiting me at the time and by some of my neighbors. There was no formal documentation, no legal representation, and no court order.

Incident 2: Sunday, August 17, 2025

On the following day, Mr. Byaruhanga returned to my home and repeated his threats of illegal eviction. This second, separate visit established a clear pattern of escalating harassment and bad faith. He asked me to go to the police station with him, where he made the same false claims to some of the staff, including a man named Mr. Friday. He even made a conscious remark about personally knowing the Community Liaison Officer (CLO), Mr. Agbara Robert, and that the CLO would not be able to help me. He would deliberately switch to the Luganda language to leave me out of the conversation. His actions made Mr. Friday aggressive towards me.

Incident 3: Monday, August 18, 2025

The situation escalated dramatically on this day, the day of my planned move-out. My landlord, Mr. Byaruhanga, in a final act of malice, arrived at the premises with a police officer. This was not a routine visit; it was a deliberate act of intimidation and a conspiracy to commit several crimes.

The action of bringing a police officer to my home to conduct a search based on fabricated allegations of “drug trafficking and terrorism” constitutes a severe and actionable violation of my fundamental constitutional rights.

- **Conspiracy and Actions Under Color of Law:** The police officer's involvement transformed this from a landlord-tenant dispute into a grave abuse of power. The coordinated efforts of the landlord, the police officer, and others involved in this scheme

constitute a conspiracy. When a police officer uses their official capacity to carry out an illegal act, it is considered acting "under color of law," a significant legal claim that highlights their abuse of authority.

- **Warrantless and Unlawful Search:** The police officer's search of my home was conducted without a legally required court-issued warrant. The officer's participation in this search, based solely on the unverified and malicious claims of my clearly unhinged landlord, is a direct violation of **Article 27 of the Constitution of the Republic of Uganda**.
- **The Officer's Testimony:** The police officer, when called as an independent witness, will be forced to confront his own complicity. He will be asked to admit that he had no court order, that his search was based on zero evidence, and that it found nothing. His testimony will expose the landlord's actions as baseless and further support my claims for damages.

This final incident, which included the landlord's use of a state agent to conduct a warrantless and illegal search, not only proves the landlord's intent to cause me harm but also demonstrates a clear and deliberate disregard for the law and the Constitution.

The Police Officer's Complicity and Abuse of Power

The police officer's involvement in the illegal search of my home is a critical element of this case. This action puts the police officer in a legally precarious position, regardless of how they respond.

- **The Officer's Predicament:**
 - **Option 1: Admitting to Lack of a Warrant:** If the officer is truthful, he will have to admit that he came to my home and participated in a search without a legally required warrant. This admission would prove that he knowingly acted unlawfully and abused his authority.
 - **Option 2: Lying About a Warrant:** If the officer claims to have a warrant, he would be required to produce it in court. Since warrants are issued by a court and a public record is kept, it would be a simple matter to prove that no such document exists. Lying under oath would constitute perjury and lead to severe consequences for the officer.
- **The Police Station's Logbook:**
 - **If the Visit was logged:** A visit to a private residence, especially to search, should be officially recorded in the police station's logbook. If such a log exists, it would serve as official, undeniable evidence that a police officer acted on behalf of Mr. Byaruhanga and Mr. Adinda without a warrant, demonstrating an abuse of power and a violation of procedure.
 - **If the Visit was Not Logged,** the absence of a record would be even more damning. It would strongly suggest that the officer was aware his actions were illegal and intentionally avoided creating an official record to cover his tracks.

This would be powerful circumstantial evidence of his guilty conscience and complicity in the illegal activities of Mr. Byaruhanga and Mr. Adinda.

This final incident, which included the landlord's use of a state agent to conduct a warrantless and illegal search, not only proves the landlord's intent to cause me harm but also demonstrates a clear and deliberate disregard for the law and the Constitution.

Conspiracy and Actions Under Color of Law

The actions taken against me were not isolated incidents but a deliberate and malicious conspiracy involving my landlord (Mr. Adinda), the property manager (Mr. Benson), the LC1 Chairman, and a police officer. Their coordinated efforts constitute a grave abuse of power and a criminal conspiracy against me.

Conspiracy to Commit Illegal Acts

Their coordinated scheme was to unlawfully seize my property, forcefully evict me, and damage my reputation. This is not just a civil matter; it is a conspiracy to commit several crimes against me, including:

- **Conspiracy to Commit Trespass:** My landlord, the property manager, and the police officer acted in concert to unlawfully enter my home without my permission. This is supported by the fact that they entered my premises without a court order or a search warrant, which is required by law.
- **Conspiracy to Commit Illegal Eviction:** The individuals involved worked together to bypass the legal eviction process, unlawfully seize my property, and force me out of my premises. This is a direct violation of the **Landlord and Tenant Act, 2022**, specifically **Section 29(2)**, which requires the presence of both an LC1 official and the police for a lawful re-entry, and **Section 45(1)**, which prohibits "self-help" evictions.
- **Conspiracy to Commit Malicious Harassment:** Their collective actions, including the dissemination of false information and the illegal search, were part of a systematic campaign to harass, intimidate, and defame me. This is supported by the false and discriminatory accusations of my being a "scammer," homosexual, and drug trafficker.

Actions Under Color of Law

The most serious aspect of this conspiracy is the police officer's involvement. When a police officer, an agent of the state, uses their official capacity to commit an illegal act, it is considered acting "under color of law." This is a significant legal claim because it means:

- **Abuse of Authority:** The police officer used his official position and the weight of the state to help my landlord carry out an illegal, unconstitutional act against me. He was not acting as a neutral party but as a tool in a personal vendetta, creating a coercive environment through intimidation and unfounded accusations.
- **Violation of My Constitutional Rights:** The officer's participation in a warrantless search is a direct violation of my fundamental rights under **Article 27** of the Constitution of the Republic of Uganda, which protects citizens from "unlawful search of the person,

home and other property." The officer's actions also violate **Article 24** (Freedom from inhuman or degrading treatment) and **Article 23** (Protection of Personal Liberty).

- **The LC1's Role (Complicity vs. Negligence):** While the LC1 Chairman is a key figure in this conspiracy, their role can be interpreted in two ways. Whether they were actively complicit in the plan or simply negligent in their duties, their actions demonstrate a significant failure to uphold their legal responsibilities. According to the **Landlord and Tenant Act, 2022**, the LC1 official's presence is mandatory for a lawful re-entry, and they are meant to act as a neutral third party to ensure proper procedure. The LC1 Chairman's awareness of the situation and failure to ensure the eviction was lawful, whether by actively participating or by simply neglecting their duty, is a critical piece of evidence demonstrating the illegality of my landlord's actions and the abuse of authority.

The involvement of a police officer and the LC1 Chairman demonstrates the extreme lengths to which my landlord was willing to go, abusing their authority to harm me. Their actions were not only illegal but also a fundamental perversion of the legal process, which I believe the court will view with extreme prejudice.

Damages Claims

1. Work Disruption Damages (SUBSTANTIAL)

Nature of Work:

AI development projects with international implications

Potential co-founder level responsibilities

"Manhattan Project" level significance (Project Stargate)

Data labeling and training systems development

Quantifiable Losses:

Daily/hourly earnings as a senior AI developer

Delayed project deliverables

Disrupted development cycles

Lost productivity during relocation

Emergency setup costs for a new work environment

2. Professional Reputation Damages

False fraud accusations in the community

Disruption of high-level professional commitments

Potential impact on co-founder opportunities

Damage to relationships with international partners

3. Relocation and Emergency Costs

Forced immediate relocation

Emergency accommodation expenses

Moving costs incurred due to illegal eviction

Set-up costs for a new home office environment

4. Property Damages

Laptop damage during forced move

Other belongings were potentially damaged in the rushed relocation

5. Emotional Distress Damages

The landlord's actions, including constant harassment, false accusations of criminal activity, and discriminatory targeting, caused severe mental and emotional distress. This was particularly impactful given the tenant's pre-existing history of depression, anxiety, and somatoform disorder. The illegal eviction, coupled with the security endangerment of having an unlocked door during a period of thefts, directly aggravated these conditions, resulting in significant harm and suffering.

Legal Strengths

1. Clear Procedural Violations

Complete bypass of the legal eviction process

Self-help eviction (key seizure)

No court involvement whatsoever

2. Discriminatory/Bad Faith Actions

False fraud accusations without evidence

Discriminatory harassment based on perceived sexual orientation

Targeting a tenant based on appearance (earring) and stereotypes

Potential violation of anti-discrimination principles

Targeting remote workers based on stereotypes

Neighbor incitement influencing decisions

3. High-Value Professional Disruption

Senior AI developer working on cutting-edge projects

International scope and significance of work

Substantial economic impact from the disruption

4. Documented Evidence Trail

The property manager's letter proves an illegal process

Embassy communication proves legitimate professional status

Clear timeline of violations

Summary of Events/Violations:

This is a detailed summary of events that took place during the illegal eviction process.

I. Landlord and Tenant Act, 2022

The landlord bypassed the legal eviction process, which requires a court filing, a judge's order, and an official bailiff. Illegal Eviction and Violations of Tenant Law

- **Failure to Adhere to Section 29(2) Protocol:** Even in cases of rent default, the Act allows landlord re-entry only in the presence of an area local council official AND the police. The landlord's action of personally taking your key, without both these parties present, directly contravenes this non-negotiable legal requirement. Your draft explicitly states the absence of signatures from the police or the LC1 chairperson on the documents, indicating non-compliance.

- **No Court Involvement:** You correctly highlight that a legitimate eviction requires a **court order** (a judge's order) obtained through a formal legal process. The landlord's letters, which merely threaten to "pursue all available lawful remedies," confirm that no such order was in place.
- **Unlawful Notice Period:** The 8-day notice period in the first letter (July 12 to July 20) is a severe violation of the Act. Section 38(2)(c) mandates a minimum of 60 days' notice for "no-fault" termination (which the landlord initially claimed), and Section 38(2)(b) requires 30 days for non-payment. This fundamental defect invalidates the notice from the outset.
- **Self-Help Eviction (Illegal):** The landlord's act of personally taking your key, intimidating you, and removing you from the premises without a court order or the strict adherence to the protocol in Section 29(2) constitutes an illegal "self-help eviction." Such actions are expressly prohibited by **Section 45(1) of the Landlord and Tenant Act, 2022**, which states that a landlord shall not "evict a tenant from the premises or require, compel or attempt to require or compel the tenant to vacate the premises" except per the Act. The physical removal and confiscation of the key are clear attempts to compel vacation outside legal channels.
- **Unlawful Entry into Rented Premises (Section 48(1) & 48(2)):** The Act grants a landlord the right to enter premises only after giving the tenant written notice of at least twenty-four hours (Section 48(1)), except in emergencies. The landlord's "multiple occasions" of visiting the property without providing proper notice or communicating prior directly contravene Section 48(1). Additionally, **Section 48(2)** explicitly states that a landlord who enters premises in contravention of this requirement commits an offence.
- **Obstruction of Rent Payment / Bad Faith (Implicit Violation of Sections 21 & 29):** While the Act (Section 21) requires a tenant to pay rent, the landlord engaged in a "premeditated rent refusal scheme." By actively preventing the tenant from fulfilling their obligation to pay rent, the landlord fundamentally undermined any legitimate claim of rent arrears. This deliberate obstruction constitutes bad faith and invalidates the landlord's subsequent attempt to re-enter the premises under Section 29, as they created the condition for "default."

II. The Constitution of Uganda 1995

The landlord and property manager's actions constitute significant violations of the Constitution of Uganda, specifically concerning the fundamental human rights and freedoms outlined in **Chapter Four**.

- **Unlawful Search and Violation of Privacy (Article 27):** The most direct constitutional violation is the illegal search of the premises. The landlord's act of bringing a police officer to the property and instigating a search for drugs based on false accusations is a direct violation of **Article 27** of the Constitution. This article guarantees every person the right to the privacy of person, home, and other property and protects against the "unlawful search of the person, home, and other property". The document notes that under Ugandan law, a search requires a court-issued warrant based on "reasonable

grounds to believe" a crime has been committed. The police officer's action of searching the premises without due process could make the officer liable, and certainly makes the landlord liable for instigating an illegal act.

- **Right to Life and Personal Liberty (Articles 22 & 23):** The landlord's actions, including the use of police intimidation and threats of immediate ejection, could also be argued to violate Article 22 (Protection of Right to Life) and Article 23 (Protection of Personal Liberty). These sections protect against actions that threaten a person's life or personal freedom without a lawful reason or court order. The police harassment and use of intimidation, especially when coupled with false accusations and the threat of illegal eviction, could be interpreted as a direct threat to the tenant's liberty.
- **Right to be free from discrimination (Article 21):** The **21st Article** of the Constitution establishes that all persons are "equal before and under the law in all spheres of political, economic, social and cultural life and every other respect" and shall not be discriminated against. The landlord's actions target the tenant based on false, stereotypical assumptions, which can be viewed as a violation of this fundamental right.

III. Penal Code Act

Discriminatory and Bad-Faith Conduct

Targeting based on perceived sexual orientation, nationality (xenophobia), profession (remote worker stereotypes), and age constitutes discriminatory behavior. While the Landlord and Tenant Act, 2022, specifically prohibits discrimination based on sex, race, color, ethnic origin, tribe, birth, creed or religion, social or economic standing, political opinion, or disability (Section 20), these broader allegations could fall under harassment or be linked to constitutional rights.

Bad Faith and Premeditation: The landlord engaged in a deliberate and planned "rent refusal scheme" to create false grounds for eviction.

Targeting and Discrimination:

The landlord made false and discriminatory accusations.

- **LGBTQ+ Discrimination:** Accused me of being homosexual based on my appearance (wearing an earring).
- **Professional Discrimination:** Targeted me for being a remote worker, stereotyping home-based work as "scamming".
- **Xenophobia:** Targeted me based on my national origin.
- **Age Discrimination:** Dismissed me as "just some random kid".

IV. The Law of Torts

Harassment and Criminal Misconduct

Trespassing and Unlawful Entry

The landlord's multiple visits without proper notice, and his stated disregard for "protocol," violate Section 48(1) of the Act, which requires 24 hours' notice for entry (except in emergencies). More significantly, they directly violate Article 27 of the Constitution of Uganda, which protects citizens from "unlawful entry... into other people's premises."

- **Pattern of Unlawful Entry:** The landlord and his agents visited the property on three separate occasions without a valid reason or proper notice. These visits were not for maintenance or inspection but for intimidation and harassment.
- **Constitutional Violation:** These actions directly violate Article 27 of the Constitution of Uganda, which protects citizens from "unlawful entry by other persons, whether security personnel or otherwise, into other people's premises."

Illegal Searches

The landlord bringing a police officer to search for drugs based on false accusations is a **major constitutional violation**. Article 27 of the Constitution also protects against "unlawful search of the person, home, and other property." A search requires a warrant issued by a court based on "reasonable grounds to believe" a crime has been committed. The landlord's actions, leading to such a search without due process, could make the police officer liable if they acted without a warrant, and certainly make the landlord liable for instigating an illegal act.

- **Lack of Legal Authority:** The landlord brought a police officer to the premises to search rooms based on false accusations of "homosexuality, drug trafficking, and terrorism charges."
- **Constitutional Violation:** This action constitutes an illegal search, which is a direct violation of Article 27 of the Constitution of Uganda, which protects citizens from "unlawful search of the person, home and other property." According to Ugandan law, a search warrant must be obtained from a court and is only issued when there are "reasonable grounds to believe" that a crime has been committed.

Strategic Advantages

1. No Desire for Reinstatement

Tenant wanted to leave anyway ("ugly house")

Focus purely on monetary compensation

No emotional attachment complicates the case

2. Landlord's Overconfidence

Believes he successfully removed "problem tenant"

Unlikely to prepare a strong legal defense

May make additional admissions

3. Strong Documentation Skills

Tech background aids in evidence organization

Professional communication proves competence

International work demonstrates sophisticated operations

4. Right to Work Remotely

There is typically no law prohibiting a foreign national living legally in Uganda from working remotely for a company based in another country. This is not considered "working in Uganda" in the traditional sense that would require a local work permit, as the tenant is not taking a job from a Ugandan citizen nor engaging with the local labor market. Their client is abroad, their pay is from abroad. This is a modern, legal, and common arrangement for digital nomads and remote workers globally.

A Profile in Innovation: Beyond Baseless Accusations

This section serves to unequivocally refute the landlord's unfounded claims of "online scamming" and to establish my verifiable history as a highly accomplished software engineer, a successful entrepreneur, and a committed lifelong learner dedicated to intellectual growth. Far from being a "random kid" or a "scammer," my career and personal pursuits demonstrate a profound dedication to innovation, problem-solving, and making a tangible impact.

Key Facts About The Tenant

Legitimate Professional Status

Position: Software Developer and potential co-founder at Nabta Lab, Inc.

Work Type: AI development, data labeling, training systems

Project Scope: Contributing to "Manhattan Project" for AI (Project Stargate)

Market Impact: Working on tech to compete with Meta's \$14 billion AI acquisition

International Relevance: Supporting American tech competitiveness globally

Work Location: Home-based (legitimate remote work arrangement)

1. Verifiable Professional Expertise & Leadership in Software Engineering & AI

My professional journey is marked by significant contributions to advanced technological projects and leadership roles in dynamic environments:

Engineering Leadership at Sahil (November 2023 - Present):

As Engineering Lead, I spearheaded the development of Sahil, an innovative "delivery location as a service" platform. This involved architecting a monorepo structure for maximum code reusability, creating a GraphQL API layer to integrate custom microservices (payments, maps, logistics), and developing a two-step supplier matching algorithm to streamline procurement for small businesses—a solution inspired by real-world challenges my mother faced running a restaurant.

Technical Hiring Consultant at G2i Inc. (April 2024 - July 2024):

In this remote role for a Miami-based firm, I played a pivotal role in scaling G2i's technical interview team across 16 time zones to meet an urgent client need (hiring 250 developers in 30 days). I conducted comprehensive technical assessments, including LeetCode and SQL tests, and delivered candidate evaluations for large teams at Scale AI, demonstrating expertise in AI and software development talent acquisition.

FullStack Engineer at Pack Srl (May 2024 - September 2024):

For this Italian-based company, I contributed to a customer-facing web application, focusing on performance enhancements, refactoring, and bug fixes. Notably, I represented the company in The DOHE Go-Together Accelerator Program, providing insights on product development and technical feasibility. My work resulted in a 20% increase in application speed and a 25% improvement in loading times through code optimization and enhanced validation. This role also provided a **monthly gross fee of 2,900 euros**, further solidifying my legitimate income.

Software Engineer - Contract at GitStart (May 2021 - October 2022):

Based out of San Francisco, California, I reviewed numerous pull requests with a high acceptance rate, contributing to major open-source projects like Cal.com and Ghost. My optimizations significantly reduced web application load times by 25% and improved user experience, leading to substantial cost savings and increased revenue for clients.

Software Engineer - Contract at FreelyFormd (June 2020 - April 2021):

In Kampala, Uganda, I maintained LabXpert, a comprehensive laboratory information system that helped process over 100,000 medical tests. I developed data visualization charts using React.js and MongoDB to track metrics on virus spread, testing speed, and revenue. I also implemented a Redis-based multi-channel notification system, drastically reducing turnaround times for testing.

AI Development and "Manhattan Project" Scope (July 2025 - Present): My work at Nabta involves architectural refactoring and security leadership, including backend migration, and fixing critical vulnerabilities by securing sensitive tokens. I initiated and led the migration of a large JavaScript codebase to TypeScript, significantly improving code quality. My projects contribute to "Manhattan Project" level AI initiatives (Project Stargate) aimed at competing with industry giants like Meta, highlighting the international significance and high value of my work.

High-Value Consultations with Leading Tech Firms: My expertise is highly sought after, leading to interview opportunities with very large technology firms, one of which paid me **\$2,500 for just a week of my time**, showcasing the significant market value of my skills.

Open-Source Contributions: I regularly contribute to open-source projects, including "steel-browser" (an Open Source Browser API for AI Agents & Apps) and "planet-of-the-bugs" (a training platform for developers), demonstrating my commitment to the broader tech community and continuous skill development.

2. Entrepreneurial Vision and Recognised Success

My entrepreneurial endeavors with Sahil demonstrate not only business acumen but also a commitment to empowering communities:

Founder of Sahil App: I founded Sahil, a digital platform addressing critical procurement challenges for Small and Medium Enterprises (SMEs) in the hospitality sector, including finding reliable suppliers, negotiating prices, and managing logistics.

Registered Company in Rwanda: Sahil is fully registered in Kigali, Rwanda, as evidenced by official documentation where I am listed as the Managing Director of SAHIL LIMITED, underscoring its legitimate operational status.

Significant Accolades & Recognition:

Winner of a **\$5,000 prize** at the MTN Momo Hackathon, triumphing over 300 applicants.

2nd place finish in the Innovation Incubator Challenger hosted by the National Communication Authority (NCA) in Juba, South Sudan.

8th place finish in a highly competitive global hackathon organized by Hashnode.

Nominated for the prestigious **Eastern Africa Startup Awards**.

Media Coverage: My work has garnered international attention, with a news article headlining "Meet 28-year-old software engineer bridging digital divide in East Africa," featured in **Nigerian Tribune, a leading newspaper in Nigeria**. This independent media validation directly contradicts any "scammer" narrative.

Financial Viability: Sahil's revenue model includes commission and subscription fees, with strong financial projections, further proving its legitimacy as a growing business.

3. Substantial Financial Standing & Global Engagement

My financial records directly contradict any notion of illicit activity:

Significant Bank Balances: My bank statements show thousands of dollars in my accounts, well above the average monthly salaries in Uganda, directly challenging the landlord's false accusations and validating my legitimate income sources.

International Work Exposure: My career has provided me with diverse experiences working with startups across different continents, including Germany, the USA, Uganda, and Rwanda, enriching my professional journey with global perspectives.

4. Educational Excellence & Intellectual Pursuits

Beyond my professional and entrepreneurial achievements, my dedication to continuous learning and intellectual expansion showcases a mind genuinely committed to knowledge:

Facebook Scholarship Recipient: I was the **only selected candidate from East Africa** out of thousands of applicants globally to receive a prestigious scholarship for a diploma from Facebook, highlighting my exceptional talent and recognition within the global tech community.

Author in Progress: I am actively writing a book that delves into complex interdisciplinary topics, specifically evolutionary biology and psychology, demonstrating a profound intellectual curiosity beyond my core tech field.

Self-Taught Anthropologist: My commitment to self-teaching anthropology further illustrates my drive to become a polymath—someone with expertise across a broad range of subjects. This pursuit reflects a deeply analytical and curious mind, entirely inconsistent with the caricature of a "scammer."

Personal Philosophy: My summary on my resume encapsulates my approach: "Blending code with curiosity, I debug human connection while crafting technology that endures." This philosophical stance highlights my empathetic and impactful approach to both technology and life.

Certifications: I hold various certifications including "JSNation Conference 2022" (May 2022), "Introduction to Python" (Dec 2018), "Python Data Science Toolbox (Part 1)" (Dec 2018), "Build your first web pages with HTML and CSS" (Oct 2018), and "Contribute to open source on GitHub" (Oct 2018), demonstrating my foundational and ongoing learning in key areas of technology.

5. Impactful Mentorship & Community Contribution

My influence extends beyond my direct projects, impacting aspiring professionals:

Testimonials from Mentees: I have received testimonials from several individuals whom I have personally taught and mentored, and who now work at global firms. This demonstrates my commitment to fostering talent and contributing to the growth of the tech community.

Student Mentorship at Indigitous (Jan 2019 - May 2019): I mentored a group of 20 students in web development, introducing them to fundamental concepts and curating learning curricula and assignments.

In conclusion, the cumulative evidence from my resume, professional contracts, company registration, awards, extensive media coverage, substantial financial records, distinguished educational achievements, and broad intellectual pursuits paints a clear picture of an accomplished, legitimate, and innovative individual. The landlord's accusations are not only baseless but are demonstrably false and appear to be part of a malicious and discriminatory pattern, targeting someone who actively contributes to the digital economy and human knowledge.